

Are we serious about implementing CEDAW?

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SEPTEMBER 3 is the 29th anniversary of the adoption of the Convention on Elimination of all forms of Discrimination against Women (UNCEDAW). It is time to ask how effectively this Convention has been used to ensure substantive gender equality. In the case of Bangladesh, we took a forward step in 1984 by ratifying the Convention. A second step has been the government's promptness in submitting reports on its actions to implement CEDAW.

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forming with CEDAW articles and the adoption of necessary measures to implement the articles ratified.

In the last two processes governments have been in serious default, as none of them

understood that their obligation required action. Indeed, the CEDAW Committee, in its consultations with the 37 member government delegation in 2004, stressed that the next report address the concerns raised by the Committee and take steps to actually implement, rather than merely give "active consideration" to, its recommendations.

The current advisor for foreign affairs, who was a member of the

delegation, will no doubt remember his government's stated commitment to enacting legislation, formulating policies and introducing programs by way of eliminating discrimination.

Bangladesh' Sixth Report is due before the January 2009 session of the Committee. Presumably, the Ministry of Women's Affairs has been tasked with its preparation. Will the report be able to admit to positive measures taken on the recommendations made by the Committee, and on the result?

The Committee's foremost recommendation was for the withdrawal of reservations to Article 2 and 16.1(C). The former article is fundamental to the state's adoption of other articles of the Convention, and the latter guarantees equality in personal rights in marriage, divorce, etc. The government, in its combined third and fourth report (in 1997), had mandated the Ministry of Law, Justice and Parliamentary Affairs to examine the position of Muslim countries regarding reservations.

Of the 26 Muslim countries ratifying CEDAW, only 7 had placed explicit reservations to Article 2. Jordan, Lebanon, Kuwait, Turkey, Tunisia and Yemen had no reservations. If the matter was under "active consideration" of the government in 2004, as admitted by the head of the delegation, a decision should have been taken by now. It is time for the government to hold to

its word.

The withdrawal of reservations would facilitate elimination of discrimination in personal laws and remove the disparity amongst women of different communities in personal matters. The government was called upon to align the definition of discrimination (in the Bangladesh Constitution and other laws) in conformity with CEDAW articles, and to endorse CEDAW standards into domestic laws. In the last four years neither the Women's Ministry nor the Law Ministry took on the comprehensive task of examining laws and suggesting amendments.

Violence against women has been a widespread concern. The Committee urged the government to legislate on domestic violence, to provide training to law enforcement personnel and judiciary and health service providers, to protect women against fatwa instigated violence and to provide safe shelters to survivors of violence.

While a draft on a proposed bill on domestic violence was circulated by the Law Commission over 5 years ago, and inputs solicited, and the Domestic Violence Forum (comprised of over 30 organisations) has prepared an alternative draft, no law has been enacted so far. While there is talk of police reform, which has included gender sensitisation, the absence of the law itself is a cause for impunity.

In 2004, the government delegation agreed to amend the Citizenship Act 1951 and Citizenship Rules 1972, in conformity with Article 9 of the Convention so that a woman married to a foreigner could pass on her

nationality to her spouse and to her children. While the Ministry of Law had responded by drafting a Bill it was never tabled in Parliament and has been gathering dust in the ministry. Even India and Pakistan have introduced legislation to this effect, so Bangladesh is way behind.

The third priority proposal was to increase women's participation in public affairs by raising the number of reserved seats in the Parliament and arranging for women to be elected directly through adult franchise. What we have instead is the allotment to political parties to select women in proportion to their strength in parliament. So we have raised the quota to 45, but members are mere ciphers for their parties and can hardly represent the interests of their community.

Other reforms recommended by the Committee included the need for a regulatory framework and effective monitoring to eliminate discrimination at the work place, and in conditions of women migrant workers. Changes in women's stereotyping were seen as resulting from wider access to education, health and employment as well as to women's property rights.

The Committee wanted the government to draw up time-lines for execution of at least some of the measures, such as withdrawal of reservations, amendment to the citizenship act and the domestic violence law. So now, when we are only 4 months away from the date for submission of the Sixth Report, where does the government stand? If it took its commitments to international standards seriously it

should have prioritised some of the do-ables over the last four years, and taken credit for timely implementation. It would have found support from women's groups across the country, who may have campaigned for withdrawal of reservations, enactment of an uniform family code, and endorsement of CEDAW articles into domestic law. But while these could be long-term aims, women were practical enough to press for actions that are possible in the short run.

At this stage, the government's report would gain credibility if it could acknowledge that, for instance, laws on citizenship and domestic violence had been enacted, that law enforcement agencies were seriously addressing the issue of violence against women, that political reforms for direct election of women were on the anvil.

Other policy decisions need also to be on the agenda, and it would certainly go to Bangladesh's credit if the report could honestly confirm that violence figures had come down, that drop-outs were decreasing, that health centres were caring for the most marginalised, and so on.

As a member of the Human Rights Council, and hoping for a second term, Bangladesh has to comply with the more onerous burden of submitting reports to other treaty bodies as well. Its compliance with the CEDAW Committee's recommendation would certainly improve its credentials. In a roundabout way the women of Bangladesh would benefit from these measures.

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Is voting my only right?